



## Research paper

## Differential rights consciousness: Teachers' perceptions of privacy in the surveillance school

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## H I G H L I G H T S

- School CCTV surveillance affects both teachers' and students' privacy.
- Teachers have a professional obligation to protect their students' rights.
- Some teachers consider their own rights while disregarding their students' rights.
- This differential rights consciousness relates to teachers' low social status.
- Understanding differential rights consciousness may assist in shaping PD courses.

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## A B S T R A C T

This article explores the rights consciousness of teachers as agents having a professional obligation to promote students' rights. The case study comprises Israeli teachers, whose social status is low, in the context of school CCTV surveillance. Based on 55 interviews, the findings revealed three clusters of perceptions: *dismissing students' privacy* as a discrete consideration in assessing school surveillance; *acknowledging students' privacy* as a discrete consideration; and *merging students' and teachers' privacy*. Almost all teachers considered their own privacy. Our conclusions focus on teachers who had *differential rights consciousness* and alluded to privacy justifications only when they concerned their own rights.

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## 1. Introduction

Can teachers appreciate their students' privacy in the face of school surveillance, when they, too, are under the same surveillance? This article explores the rights consciousness of teachers as agents who have a professional obligation to protect the rights of others (see [Convention on the Right of the Child, 1989](#), Article 29(1)(b); [International Covenant on Economic, Social and Cultural Rights 1966](#), Article 13(1)). The case study considers the reactions to the presence of school-based closed-circuit TV surveillance

systems (CCTVs) by Israeli teachers who do not occupy senior positions in their schools and whose general social status is low. CCTV is a relatively old technology, widely used in public spaces. Examining teachers' moral perceptions regarding the surveillance technology to which they have become accustomed may indicate how accepting they would be when newer surveillance technologies are introduced. We focus on the ways teachers perceive the right to privacy in the case of school surveillance rather than on the decision to install surveillance systems.

The literature review proceeds in four sections, reviewing the building blocks of our research, regarding (1) CCTVs in schools, with a focus on their ethical and educational implications; (2) teacher professionalism and their ethical knowledge, reasoning, and practice; (3) the concept of rights consciousness, denoting how rights are perceived and what conditions spur people to define problems and obstacles in terms of rights. Only few studies have

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explored the rights consciousness of individuals who have a professional obligation to protect others' rights, typically investigating managerial levels and neglecting those holding mid- or low-level positions; (4) The right to privacy and people's perceptions thereof. The subsequent section describes the study's objectives, social and organizational context, and methodology, with data collection derived from interviews with 55 Israeli teachers employed in 55 different schools.

The findings analyze teachers' perceptions of students' privacy as well as their own privacy. Almost all the teachers we interviewed noted the importance of their own privacy. We identified three clusters that capture teachers' perspectives of students' privacy: *dismissing students' privacy* as a consideration in its own right (which we call discrete consideration) in assessing school surveillance, regardless of the teachers' privacy, *acknowledging students' privacy* as a discrete consideration, and *merging students' and teachers' privacy*. Our analysis focused on the first group, namely teachers who perceived their own privacy as important but were dismissive of students' privacy as a discrete consideration in assessing school surveillance. We frame our findings within a novel concept that we term *differential rights consciousness*. This concept describes a situation in which people who have a professional obligation to protect others' rights consider their own rights while disregarding the rights of those under their purview. In the current study, these are teachers vis-à-vis students. In a previous study examining the decision-making process of school principals regarding the installation of CCTVs, we found that all principals understood that their decision affected both students' and teachers' privacy (Perry-Hazan & Birnhack, 2016). The current study raises critical questions regarding the impact of teachers' organizational position on their rights consciousness. The Discussion suggests explanations for teachers' differential rights consciousness, relying upon theories of perspective-taking in organizations, rights consciousness, and privacy.

## 2. School CCTVs

In recent years, school CCTVs emerged as a worldwide phenomenon (e.g., Fisher et al., 2019; Hope, 2015; Kupchik, 2016; Mowen & Freng, 2019; Tanner-Smith et al., 2017). Their installation is part of broader trends of enhancing school surveillance, incorporating newer technological strategies, such as biometric scanners, radio-frequency identification (RFID), health apps, and online monitoring, as well as policing practices of drug testing, searches, sniffer dogs, and school police officers (e.g., Deakin et al., 2018; Kupchik, 2016). Practices of school surveillance are also intertwined with standardized testing, accountability, and class observations (see Finefter-Rosenbluh, 2016; Hall & Noyes, 2009; Nathaniel et al., 2016; Ryan et al., 2017; Um, 2019).

Studies concerning school CCTVs discussed educational and ethical implications (Hirschfield & Celinska, 2011; Hope, 2009; Perry-Hazan & Birnhack, 2018; Warnick, 2007), and the perceptions of school principals and municipal officials (Perry-Hazan & Birnhack, 2016, 2018), secondary school students (Birnhack & Perry-Hazan, 2020; Bracy, 2011; Johnson et al., 2018; Taylor, 2010, 2011), and primary school students (Birnhack et al., 2018). Teachers' perceptions of students' surveillance have yet to be addressed. One notable exception is a study exploring the perceptions of eight teachers and 21 students in three UK schools regarding CCTV surveillance (Taylor, 2011). Teachers understood students as the intended objects of observation and rarely considered themselves targeted by the cameras. Taylor conceptualized such perceptions as a binary conception of surveillance, namely, as a means of protecting "us" and controlling "them" (pp. 316–317). Our previous study focused on teachers' perceptions concerning their

monitoring by CCTVs (Perry-Hazan & Birnhack, 2019). We identified various practices of teacher surveillance: tracking teacher attendance, inspecting teaching and disciplining of students, monitoring non-classroom time management, and observing on-duty teachers during school recess. The findings revealed how surveillance demoralized teachers, induced resistance, and produced social categorizations that exacerbate teachers' low social status. The current study examines teachers' perceptions of students' surveillance.

In Israel, at present, CCTVs are the only surveillance technology in use in schools. The Ministry of Education regulated the installation and usages of school CCTVs (Ministry of Education, 2015), highlighting that CCTVs are invasive of students' privacy, and thus, their usage should be a last resort. These regulations prohibit installing cameras in teachers' lounges and classrooms. In a previous study, we found that Israeli school principals integrated CCTVs in their educational practices in various ways, including gathering evidence in semi-legal disciplinary procedures and real-time surveillance (Perry-Hazan & Birnhack, 2018). Some of these uses have implications on students' rights to due process, privacy, and autonomy, teaching them misguided lessons about how power relations determine the scope of these rights. The intense student-teacher interaction merits that we consider the perceptions of teachers as well.

## 3. Teacher professionalism and ethical knowledge, reasoning and practice

Educators have long struggled to advance the perception that teaching is a highly complex profession, worthy of the same status characterizing other licensed professions, such as law, medicine, and psychology (Barrett et al., 2012; Ingersoll & Merrill, 2011). Studies have emphasized teachers' professional knowledge as a key indicator in the definition of teaching as a profession (Fuller et al., 2013; Ingersoll & Merrill, 2011; Price & Weatherby, 2018; Shulman, 1986, 1987; Winch, 2004). As teaching is an unavoidably moral endeavor (Bullough, 2011; Sanger & Osguthorpe, 2011), studies have stressed the importance of teachers' proficiency in ethical matters, which enables them to link core values with their daily actions (Shapira-Lishchinsky, 2009, 2018; Whitty, 2000). Being cognizant of students' rights is a crucial component of the ethical knowledge that professional teachers should acquire and learn to process and apply (German Ben-Hayun & Perry-Hazan, in press; Perry-Hazan & Tal-Weibel, in press; Schimmel & Militello, 2007; see also; Militello et al., 2009; Stefkovich, 2006).

The interface of teacher professionalism and ethics concerns not only ethical knowledge; it also alludes to teachers' ethical reasoning—namely, the process of dealing with an ethical dilemma—and teachers' behaviors in actual cases (Shapira-Lishchinsky, 2016, 2019). Ethical teaching is invariably about decision-making that recognizes and balances competing professional, institutional, and personal interests (Barrett et al., 2012; Ehrich et al., 2011). Teachers' analysis of ethical dilemmas is influenced by their professional ethics, legal policies, organizational culture, the social context, and their own values and beliefs, among other factors (Ehrich et al., 2011; see also; Sanger & Osguthorpe, 2011). The study of rights consciousness, in which our inquiry is grounded, provides a more specific framework for the analysis of teachers' reasoning relating to human rights.

Ethical teaching encompasses various ethical aspects (Shapira-Lishchinsky, 2019), but its core concerns teacher-student relationships (Bullough, 2011). Accordingly, two central components of teachers' reasoning about ethical dilemmas comprise *morality of justice*, reflected by legitimizing rights and obligations, and *morality of care*, which focuses on responsiveness to students' needs

(Adams, 2015; Shapira-Lishchinsky, 2016). Our study is embedded in the morality of justice, as we explored teachers' perceptions of students' privacy. Nevertheless, the explanations of our findings, grounded in theories of perspective-taking, are intertwined with a morality of care.

#### 4. Rights consciousness

To explore teachers' perceptions of student privacy, we employ a socio-legal theoretical framework laying on the concept of rights consciousness. The study of rights consciousness examines how rights are perceived and what processes spur people to define problems and obstacles in terms of rights (Merry, 2003). Developing rights consciousness is the first step in the legal mobilization process, representing how people invoke legal institutions, mechanisms, and actors to make claims (Kahraman, 2018; Marshall, 2005). Felstiner et al. termed this first step as "naming" (Felstiner et al., 1980–1981, p. 635). When people do not perceive obstacles they encounter as violations of rights, they are unlikely to proceed to the next stages of the process—"blaming" someone else for the violation of rights and then "claiming" their rights by turning to the person or entity believed responsible for such claims (pp. 635–636).

This legal mobilization process is relevant not only to people whose rights were violated. It also applies to individuals who have a professional obligation to protect others' rights. For example, a student may go through all three stages of the mobilization process and complain to his or her teacher about bullying, but the teacher might fail to name the injury as a violation of rights, and thus, not act to remedy the situation. When teachers ignore student's complaints regarding violation of rights due to their failure to name it, the teachers' rights consciousness hinders the mobilization of the student's rights.

One of the factors that may facilitate the development of rights consciousness is conveying knowledge pertaining to human rights and their mobilization (Almog & Perry-Hazan, 2011; Engel & Munger, 2003; Gallagher & Yang, 2017; Hirsh & Lyons, 2010). Naturally, the process of naming becomes more complex when the rights at stake are embedded in ambiguous law (Perry-Hazan & Birnhack, 2016; Thompson et al., 2015) or elusive, such as those in the legal fields of anti-discrimination (McElhattan et al., 2017), harassment (Tinkler, 2012), and privacy (Perry-Hazan & Birnhack, 2016). The development of rights consciousness also relies upon practices that reinforce the experience of rights (Almog & Perry-Hazan, 2011; Engel & Munger, 2003; Merry, 2003). Thus, rights consciousness is intertwined with the normative, cultural, social, and institutional environment (see Gallagher & Yang, 2017; Marshall, 2005). Generally, individuals at higher social status levels claim a greater sense of entitlement (Hirsh & Lyons, 2010; Shoshana, 2017).

Studies concerning the rights consciousness of individuals professionally charged with protecting the rights of others are lacking. Quantitative psychological studies have shown that high power diminishes the ability to imagine the world from the vantage point of others (see review in Blader et al., 2016; Galinsky et al., 2016). However, when power holders have a professional obligation to protect others' rights, their rights consciousness demands closer examination.

Edelman et al. (1993) interviewed organizational complaint handlers, finding that although they sought to resolve complaints, they tended to recast discrimination claims as managerial rather than legal problems. Munkres (2008), who explored the legal consciousness of trainers and trainees in organizational anti-harassment and diversity training programs, found that some trainees diluted the content of rights. Thompson et al. (2015) found

that various organizational practices and experiences—such as on-the-job training and exposure to school-related legal threats—shape US educators' conceptions of students' due process rights. Our study on Israeli school principals' decision-making process regarding the installation of CCTVs in schools (Perry-Hazan & Birnhack, 2016) showed that the principals merged managerial considerations, such as security and costs, with their personal conceptions of human rights and education.

Most of the reviewed studies focused on individuals holding relatively senior positions. These studies showed that individuals having a professional obligation to protect others' rights merged organizational considerations with human rights (Edelman et al., 1993; Munkres, 2008; Perry-Hazan & Birnhack, 2016; Thompson et al., 2015), discussing how educators understand students' right to due process, did not differentiate between teachers and administrators.

Our study contributes to this scant literature in several ways. First, we focus on the under-studied group of individuals in a mid-level organizational position, namely teachers, whose organizational status is low. The organization's goals and the teachers' interests do not necessarily overlap (see Overbeck & Park, 2006). Second, we focus on school as a people-centered organization (Overbeck & Park, 2006), whose primary aim is promoting students' achievements, skills, and well-being. Third, our findings focus on the stage of *naming* (Felstiner et al., 1980–1981) rather than on the decision-making process. Whereas other studies analyzed how educators balance students' rights with organizational and personal interests (Ehrich et al., 2011; Perry-Hazan & Birnhack, 2016; Shapira-Lishchinsky, 2016; Thompson et al., 2015), here we explore to what extent teachers acknowledge students' privacy as a pertinent consideration in assessing school surveillance.

#### 5. The right to privacy and its justifications

Privacy is enumerated in international treaties (e.g., Convention on the Rights of the Child, 1989, Article 16; International Covenant on Civil and Political Rights, 1966, Article 17). In Israel, privacy is a constitutional right, enumerated in the Basic Law: Human Dignity and Liberty (1992, Article 7) and further elaborated in the Privacy Protection Act (1981). Additionally, the Student's Rights Act (2000, Article 14) protects students' personal data. In 2015, the Ministry of Education issued school CCTV surveillance regulations, as discussed in Section 2. Under current Israeli law, video surveillance by a public authority, like schools, is considered *prima facie* a violation of privacy. Nevertheless, this violation may be justified under the constitutional scheme (Basic Law: Human Dignity and Liberty, 1992, Article 8).

The right to privacy is particularly susceptible to the challenges of rights consciousness. Privacy's amorphous nature, disputed theoretical foundations, and the technological and social challenges render it difficult to articulate and acknowledge (Solove, 2008). Numerous diverse theoretical justifications have been offered regarding the right to privacy: Westin (1967) promoted privacy as control, Gavison (1980) emphasized privacy as a limited access to a person, and Solove (2008) found that these and other theories are either overbroad or too narrow, instead suggesting a taxonomy of privacy. Nissenbaum (2010) offered contextual integrity as a framework to conceptualize privacy infringements.

Pertinent to the current study, privacy can create a safe space, what Goffman (1959) called "backstage," where one does not need to provide explanations, or what Richards (2015) called "intellectual freedom," where a person can think freely. Privacy can also promote trust (Waldman, 2018). Despite these justifications,

arguments regarding the death of privacy as a social norm persist (for an analysis see Solove, 2011), fueled by data industry's leaders, such as Mark Zuckerberg (see Johnson, 2010). Indeed, the introduction of new technologies into pre-existing social settings may trigger a process of normalizing new surveillance technologies; namely, people get used to them and then, the next surveillance measure is conceived as a natural development (see Foucault, 1975). The upshot of the above is that the scope of privacy is contested and constantly renegotiated. Under such conditions of uncertainty and indeterminacy, the development of rights consciousness becomes more complex and fluid.

## 6. Research design

### 6.1. Objectives and contextual background

This study explored the rights consciousness of teachers in their role as agents who have a professional obligation to protect their students' privacy but who do not hold senior school positions. More specifically, we examined whether and how teachers viewed students' right to privacy, focusing on the context of school CCTV surveillance.

The school context enabled us to explore how teachers perceive students' privacy in two kinds of spaces: classrooms, where surveillance targets both teachers and students, and hallways and schoolyards, where surveillance primarily targets students. The latter is a student-dominant space, while the former is a mixed space. In Israeli schools, teachers usually spend their time in the teachers' lounge during recess, whereas students may remain in the classroom.

The teachers we interviewed are located in a distinctive position. On the one hand, they hold substantial power over their students' rights and have a professional obligation to protect these rights (*Student's Rights Act, 2000*) and provide human rights education (*National Education Act, 1953, Article 2(2)*). In the context of school surveillance, teachers are responsible for the fair management of their students' routine disciplinary procedures, which may become thorny when footage is used (Perry-Hazan & Birnhack, 2018). On the other hand, the teachers, too, are subject to their principal's gaze. They are situated between the surveilling institution and the surveilled subjects and are themselves often the object of surveillance by both.

Israeli teachers' social status is substantially lower than that of other professions and lower than in other countries (Dolton et al., 2018; OECD, 2018). A study on teachers' social status in 21 countries ranked Israeli teachers next to last (Dolton et al., 2018). The index examined how teachers are respected relative to other professionals, to what extent would parents encourage their children to become teachers, to what extent are teachers entrusted with providing good education, and what people think teachers ought to be paid.

Israeli teachers are not subject to a binding code of ethics, a critical component for the professionalization of teaching (Shapira-Lishchinsky, 2018). Despite various attempts to formulate such a code (Ministry of Education, 2016), these efforts failed due to the Ministry of Education's reluctance to invest resources in its implementation and the teacher unions' apprehensions of tighter control (Shapira-Lishchinsky, 2017).

### 6.2. Methodology

This study is based on a qualitative analysis of in-depth semi-structured interviews with 55 teachers employed in 55 Israeli schools that had installed CCTVs. After obtaining ethical approvals from our universities' IRBs and the Ministry of Education, we

recruited teachers working in schools that had installed CCTCs. The teachers were recruited mostly through personal contacts, the vast majority of whom agreed to participate in the study. Some refused due to lack of time. A small number of participants responded to announcements that we published on social media and in universities. All interviews were conducted between July 2016 and May 2017, with 54 interviews conducted in-person and one online. Interviews lasted between 30 and 60 min.

We employed heterogeneous purposive sampling (Ritchie et al., 2013). The sampling guaranteed diversity in teacher demographics (age, education, tenure), school sector (elementary/secondary, secular/religious, Jewish/Arab/Druze), geographic spread, and the municipalities' socioeconomic status (see Table 1). The sample comprised 39 women and 16 men, reflecting the gender distribution of Israel's teaching profession. Quotations ascribed to interviewees are identified by the letter T and a serial number 1–55.

The teachers were asked about the cameras' location in the school, their usage, the regulations regarding access to the footage, and their involvement in the decision to install CCTVs. We also asked for the teachers' personal opinions regarding cameras in different locations in the school. These first questions were open. Only afterward, we asked whether they believed the cameras derogated rights in general and students' privacy in particular. Whereas we asked no specific question concerning the teachers' own privacy, the teachers introduced this topic when asked about students' privacy. In addition, we asked the teachers whether they perceived the school as a public or a private space.

The interviews were recorded and transcribed verbatim. To ensure reliability, each of the authors reviewed the transcriptions independently and suggested analytical categories. Disagreements resolved by discussion. We designed an initial coding scheme that referred to the main themes that emerged from the interviews, including teachers' knowledge of the CCTVs and their involvement in the decision-making processes, teachers' normative stances regarding cameras in different locations within the school, and teachers' perceptions of school CCTV surveillance. We used *Dedoose* software to categorize this coding scheme. This initial categorization revealed the phenomenon of differential rights consciousness. Accordingly, in our analysis, we chose to focus on teachers' perceptions, particularly on their perceptions of students' privacy and their own privacy. We then formulated sub-categories, reflecting different clusters of teachers' perceptions of students' privacy (see Table 1).

## 7. Findings

This section includes three parts. An introductory part describes the teachers' knowledge about the CCTVs and the degree of their involvement in the decision to install the systems. This background information alludes to the organizational status of our interviewees. We then present the main findings of our research. The second part portrays teachers' perceptions of students' privacy, where we identified three clusters of perceptions: *dismissing students' privacy*, *acknowledging students' privacy*, and *merging students' privacy with teachers' privacy*. The third part delves into teachers' perceptions of their own privacy.

### 7.1. Teachers' knowledge regarding CCTVs and their involvement in decision-making processes

Twenty-one teachers believed they knew exactly how many cameras were in the schools and their location. Twenty-four teachers reported only partial knowledge, and 10 teachers said they were only minimally cognizant of the cameras' numbers and locations. Most teachers did not know whether the cameras can be

**Table 1**  
Teachers' demographics and their perceptions of students' privacy.

| Serial no.                               | Gender | Age | Tenure | Main subject taught/Field of expertise | Homeroom teacher | School sector    | School Grade Level | Special features of the school | Merging students' privacy with teachers' privacy (N = 21) |
|------------------------------------------|--------|-----|--------|----------------------------------------|------------------|------------------|--------------------|--------------------------------|-----------------------------------------------------------|
| Dismissing students' privacy (N = 28)    |        |     |        |                                        |                  |                  |                    |                                |                                                           |
| 2                                        | F      | 43  | 20     | Biology                                |                  | Jewish Secular   | 10–12              |                                |                                                           |
| 4                                        | F      | 27  | 1      | Social Science                         | +                | Jewish Secular   | 10–12              | Youth at Risk                  | +                                                         |
| 5                                        | F      | 53  | 17     | Math                                   |                  | Jewish Secular   | 10–12              |                                |                                                           |
| 7                                        | F      | 40  | 15     | Special Education                      |                  | Jewish Secular   | 7–9                |                                | +                                                         |
| 8                                        | F      | 52  | 17     | Literature                             |                  | Jewish Secular   | 7–12               |                                |                                                           |
| 13                                       | M      | 34  | 3      | Music                                  | +                | Jewish Secular   | 1–12               | Open school                    |                                                           |
| 15                                       | M      | 32  | 5      | Literature                             | +                | Jewish Secular   | 7–12               |                                | +                                                         |
| 17                                       | M      | 38  | 12     | Israel Culture + Sports                |                  | Jewish Secular   | 7–12               |                                |                                                           |
| 21                                       | F      | 50+ | 20     | Literature                             | +                | Jewish Secular   | 7–12               |                                | +                                                         |
| 22                                       | F      | 41  | 9      | Literature + Civics                    |                  | Jewish Secular   | 10–12              |                                |                                                           |
| 23                                       | F      | 30  | 8      | Special Education                      | +                | Arab             | 1–9                | Special Education              |                                                           |
| 24                                       | M      | 35  | 10     | Science                                |                  | Jewish Religious | 1–6                |                                |                                                           |
| 25                                       | F      | 58+ | 35     | Hebrew                                 | +                | Jewish Secular   | 1–6                |                                | +                                                         |
| 26                                       | F      | 52  | 20     | Elementary Education                   | +                | Arab             | 1–9                |                                |                                                           |
| 28                                       | M      | 40  | 2      | Medicine                               |                  | Jewish Secular   | 10–12              |                                |                                                           |
| 29                                       | M      | 43  | 18     | Math                                   | +                | Arab             | 7–9                | Special Education              | +                                                         |
| 31                                       | M      | 38  | 5      | Geography                              |                  | Arab             | 1–6                |                                |                                                           |
| 34                                       | F      | 31  | 5      | General                                | +                | Jewish Secular   | 1–6                |                                |                                                           |
| 36                                       | F      | 24  | 2      | Arabic                                 |                  | Jewish Secular   | 7–9                |                                |                                                           |
| 40                                       | F      | 30  | 16     | English                                |                  | Arab             | 1–9                |                                |                                                           |
| 41                                       | F      | 39  | 2      | Arabic                                 |                  | Druze            | 1–6                |                                |                                                           |
| 47                                       | F      | 38  | 7      | Math                                   |                  | Jewish Secular   | 7–9                |                                | +                                                         |
| 48                                       | M      | 29  | 3      | History                                |                  | Arab             | 1–12               |                                | +                                                         |
| 49                                       | F      | 26  | 3      | Arabic                                 |                  | Arab             | 1–6                |                                | +                                                         |
| 51                                       | F      | 27  | 7      | Arabic + History                       |                  | Druze            | 7–12               |                                |                                                           |
| 52                                       | F      | 27  | 4      | Counselor                              |                  | Druze            | 10–12              |                                |                                                           |
| 53                                       | F      | 27  | 7      | Counselor                              |                  | Arab             | 10–12              |                                |                                                           |
| 54                                       | F      | 31  | 5      | English                                |                  | Arab             | 1–6                |                                | +                                                         |
| Acknowledging students' privacy (N = 26) |        |     |        |                                        |                  |                  |                    |                                |                                                           |
| 3                                        | F      | 26  | 7      | Technology                             |                  | Jewish Religious | 7–12               |                                |                                                           |
| 6                                        | F      | 57  | 30     | Literature                             |                  | Jewish Secular   | 10–12              |                                |                                                           |
| 9                                        | F      | 39  | 15     | Literature                             | +                | Jewish Secular   | 7–9                |                                |                                                           |
| 10                                       | F      | 40  | 15     | English                                |                  | Jewish Religious | 7–9                |                                |                                                           |
| 11                                       | F      | 30  | 3      | Science                                |                  | Jewish Secular   | 1–9                |                                |                                                           |
| 12                                       | M      | –   | 7      | Science                                | +                | Jewish Secular   | 1–6                |                                |                                                           |
| 14                                       | F      | 34  | 12     | Special Education                      | +                | Jewish Secular   | 1–9                |                                | +                                                         |
| 16                                       | F      | 35  | 13     | Literature                             | +                | Jewish Secular   | 7–12               |                                |                                                           |
| 18                                       | M      | 36  | 5      | Civics                                 |                  | Jewish Secular   | 10–12              |                                | +                                                         |
| 19                                       | F      | 45  | 5      | Art                                    |                  | Jewish Secular   | 1–6                |                                |                                                           |
| 20                                       | M      | 33  | 3      | Civics + History                       | +                | Jewish Secular   | 7–12               |                                | +                                                         |
| 27                                       | F      | 47  | 19     | Art                                    |                  | Jewish Secular   | 10–12              |                                | +                                                         |
| 30                                       | M      | 35  | 8      | Field Trips, Nature                    |                  | Jewish Secular   | 7–12               |                                | +                                                         |

(continued on next page)

Table 1 (continued)

| Serial no.     | Gender | Age | Tenure | Main subject taught/Field of expertise | Homeroom teacher | School sector    | School Grade Level | Special features of the school | Merging students' privacy with teachers' privacy (N = 21) |
|----------------|--------|-----|--------|----------------------------------------|------------------|------------------|--------------------|--------------------------------|-----------------------------------------------------------|
| 32             | M      | 44  | 16     | Art                                    |                  | Jewish Secular   | 10–12              |                                | +                                                         |
| 33             | F      | 40  | 18     | General                                | +                | Jewish Secular   | 7–12               |                                | +                                                         |
| 35             | M      | 33  | 5      | Civics                                 | +                | Arab             | 7–12               |                                | +                                                         |
| 37             | F      | 30  | 5      | Arabic                                 |                  | Jewish Secular   | 7–12               |                                | +                                                         |
| 38             | F      | 60  | 28–30  | Art                                    |                  | Jewish Secular   | 10–12              |                                |                                                           |
| 39             | F      | 53  | 32     | Dance                                  |                  | Jewish Secular   | 7–12               |                                | +                                                         |
| 42             | F      | 50+ | 29     | Special Education                      | +                | Jewish Secular   | 1–6                |                                |                                                           |
| 43             | F      | 33  | 3      | Literature + Art                       | +                | Jewish Religious | 10–12              | Youth at Risk                  |                                                           |
| 44             | M      | 41  | 3      | Civics + Sociology                     |                  | Jewish Secular   | 7–12               |                                |                                                           |
| 45             | F      | 55  | 25     | Civics                                 |                  | Jewish Secular   | 7–12               |                                |                                                           |
| 46             | F      | 41  | 16     | Science                                |                  | Jewish Secular   | 1–6                |                                |                                                           |
| 50             | M      | 53  | 25     | Literature                             | +                | Jewish Secular   | 1–9                | Special Education              | +                                                         |
| 55             | F      | 29  | 7      | Counselor                              |                  | Arab             | 1–6                |                                |                                                           |
| Not classified |        |     |        |                                        |                  |                  |                    |                                |                                                           |
| 1              | F      | 28  | 2      | Special Education                      | +                | Jewish Secular   | 1–6                | Special Education              |                                                           |

remotely controlled. According to the teachers, none of the schools had provided written guidelines concerning access to the footage. Thirteen teachers were aware of a routine procedure of requests to access footage, which typically required the principal's approval and presence during the review. Only one interviewee who recently studied an education law course was familiar with the Ministry of Education's regulations (2015). Most teachers had only anecdotal knowledge about the CCTVs' usages, based on their personal experience. They recounted specific cases when their students were involved in disciplinary events, and the CCTVs were used to collect evidence. Some teachers described having seen the principal watching the transmissions during the day. Twenty-eight teachers noted that the CCTVs were used for teachers' surveillance. Eleven teachers said that they were unaware of the CCTVs' purpose.

Most teachers ( $n = 37$ ) had been working at the school when new cameras were installed. Of these 37 teachers, 21 reported that the principal neither consulted the teachers nor notified them about the cameras. Four teachers indicated that they did not know whether the principal consulted the teachers or notified teachers about the cameras. Eleven teachers said that teachers were notified, but two of them were unsure. Only one interviewee reported that the principal consulted the teachers (T33).

## 7.2. Teachers' perceptions of students' privacy

We classified the teachers' perceptions of students' privacy into three clusters. The first two clusters are characterized by opposing views; thus, they comprise different groups of teachers. The first cluster included 28 teachers who dismissed students' privacy as a discrete consideration in assessing school surveillance, namely, a separate consideration that is not necessarily related to teachers' privacy. The second cluster included 26 teachers who explicitly acknowledged students' privacy as a discrete and pertinent consideration in assessing school surveillance. The third cluster

includes a group of 21 teachers who merged students' privacy with their own privacy. As the findings below illustrate, the third cluster reflects the unique nature of the classroom in the educational setting. Ten of the teachers included in this cluster did not regard students' privacy as a discrete consideration, whereas 11 did; thus, teachers in this cluster may also appear in one of the first two. One special education teacher was not assigned to a cluster, as her interview revealed unique complexities.

Whereas no significant demographic variations were found among teachers in the different clusters regarding school grade level or teachers' age, gender, or tenure, two distinctions were identified: Five of the six civics teachers in our sample acknowledged students' privacy as a discrete consideration in assessing school surveillance, distinguishing them from teachers of all the other subjects. A further distinction was related to the school sector: 12 of the 14 teachers working in Arab schools dismissed the importance of students' privacy, distinguishing them from teachers in Jewish schools, who were mixed in their views. The following sections explain and characterize the three clusters.

### 7.2.1. Dismissing students' privacy

When we asked the teachers if they believed that CCTVs derogate students' privacy rights, many of them were dismissive of students' privacy as a discrete consideration. Some of them were even surprised when we asked whether the cameras violated students' privacy. We found this approach mostly regarding hallways and schoolyards. For example, T17 said that he "hasn't ever heard of such an assertion." T5, T53, and T40 asked the interviewers follow-up questions reflecting their surprise at the idea that there may be some connection between CCTVs and students' privacy.

Many teachers explained their opinion, dismissing students' privacy in assessing school surveillance, by saying that students were unconcerned about their privacy. For instance:

T4: I don't feel it bothers them.

T54: I don't know how it will affect students if they care at all.

Some of these teachers (T5, T21, T34, T36) referred to the prominent role of technology and surveillance in students' lives. T36 said that "the whole life of an adolescent is technology ... they refer to the cameras as something 'friendly.'" Similarly, T5 noted that students "are used to being under the camera's eye all the time" and that "they take photos of themselves ... all day." T21 provided a deeper explanation, arguing that "the students nowadays were born into [technology]," and surveillance "doesn't harm them because it's really in their consciousness." "It's a reality," she asserted, "like wearing a school uniform."

Teachers who said that students are indifferent and unconcerned about their privacy also stated that students do not have sufficient maturity and knowledge to understand and evaluate privacy. T26, who works in an elementary school, determined that "students have no awareness of their privacy," while T48 made a similar statement about middle school students. T49 explained her assumption that students in her school do not know what privacy is by noting that they "don't have privacy at home or any other place, so they don't expect to receive it at school."

To justify their opinion that the students are unconcerned about their privacy, some teachers confidently claimed that students are oblivious to the cameras. As T41 put it: "Children don't care about the cameras. Elementary school children behave naturally, naively, without many thoughts and calculations." Similarly, T49 noted that students' "free and indifferent behavior, even if aware of the cameras' presence," make her think "that the cameras don't make students feel that their privacy is violated." T31 dismissed the question by noting: "Do you think that the students even notice? The cameras are part of the scenery." T15 compared the cameras to novice teachers or school officials who come to observe the class and said that students "forget the [observers] are present." T53 argued that only a negligible percentage of "problematic" students who have discipline problems are disturbed by the cameras. However, she noted, "a regular student who ... abides by the rules and regulations, won't have a problem with the cameras."

Another argument for dismissing students' privacy was related to what the teachers viewed as a crucial need to control students' violent behavior. T23 explained: "There's no privacy on the school grounds. It's a problematic age in which students curse teachers loudly, push young children down the stairs, and engage in altercations time and again. So, what's privacy?" Generally, teachers who were dismissive of students' privacy used harsh words upon describing students' behavior. For instance, T8 noted: "There should be a camera at the entrance to the restroom ... since we are aware of the vandalism, the disgusting [things that students do there]. Students do terrible things." These teachers also emphasized the need to discipline students, and some of them reported regularly using the cameras' presence as a tool in the daily management of students' discipline. T17 explained that his educational "message" to the students is: "Don't ever lie, and you can't lie, because I can check you [with the cameras]." T34 even exploited her second-grade students' erroneous assumption that the smoke detector in their classroom is a camera. She described that when students complain about an incident that occurred during recess, she used to tell them: "If I check the camera now, what would I see?"

Some teachers who dismissed students' privacy relied on the nature of the school as they perceived it. For example, T15 and T21 said that schools are not democratic institutions. T23 said that privacy was irrelevant for children, as they do not make their own decisions in schools. "Most elementary school students also don't like to study," she noted, "so will we cancel schooling in order not to derogate their freedom of choice?" Other teachers said that schools

are public places where privacy should not be expected. As T17 put it: "At the moment you enter the school gate as a student, you should be aware that there are eyes on you all the time, that every move you make—or at least 90% [of the moves]—is filmed, documented." T28 said that schools are more public than restaurants and shopping malls since, in the latter places, people want to be "alone," "enjoy," and "have fun."

#### 7.2.2. Acknowledging students' privacy

A second group of teachers did acknowledge students' privacy as a discrete consideration in assessing school CCTV surveillance. Many of these teachers indicated that students desire privacy and feel uncomfortable when they are under surveillance. As T3 put it: "Children stay in school most of the day ... There are some things that [they] want to keep to themselves. [The students might be thinking:] 'I didn't have a good day ... so I wouldn't want it to be filmed.'" Some teachers provided specific examples of students who do not want to expose their vulnerabilities or weaknesses in front of the cameras. For instance, T3 mentioned situations where boys want to cry in private, and T42 mentioned children who have anger issues or severe behavior problems and are "afraid to be seen in uncomfortable situations."

Some of the teachers who argued that students desire privacy reported that students have complained about CCTV surveillance. T14 recalled the students' angry questions after the cameras' installation: "What?.. Why are we being filmed? Are we in jail?" Likewise, T35 said that his students were concerned. "The *Big Brother* who watches is disciplining and makes students uncomfortable," T35 noted. T50 said that "it's evident" that the students are disturbed due to the cameras' presence and lamented that adults "tend to think that young children care less about their privacy."

Teachers who acknowledged students' privacy also said that children need privacy for developmental and emotional reasons. As T27 put it: "Students need some 'hideaway'; they need to know that they have places where they know that they [can do forbidden things] ... I'm for the smokers. It's not that I smoke ... but I do believe that they need [a concealed place for] it." T30 said in this regard that the cameras "limit children's freedom to behave [freely], as they would have behaved without the cameras." More generally, T30 noted: "children shouldn't be under surveillance all the time ... children are first and foremost children; they behave as they behave, and there's no reason for someone to be watching their social interactions ... It's theirs."

Teachers who acknowledged students' privacy explained why the school was a semi-private space in which students spend many hours and form intimate relationships. T43 noted:

A school is both public and private ... It's public because there are many people here, and anyone can enter. It's private because it's very, very intimate ... because people spend a considerable part of their lives here ... and experience extremely private things ... There are social and intimate aspects at school that don't exist in other [public] places ... such as a fixed population having a shared schedule and many, many hours [together].

Similarly, T38 said that a school is "almost private," as "it's an institution in which people spend several years" and is founded on different values than a mall or a restaurant. Other teachers went a step further and defined the school as a private space that resembles "an extended family" or a "home."

Many of the teachers in this group also mentioned the compulsory nature of schooling as a moral justification to protect students' privacy. For instance, T16 said:

Students are compelled to attend school ... So, our moral duty toward them is greater ... It's a place where we must create a sphere of privacy ... I'm not sure that this analysis is valid in legal

terms, but that's what I feel.

Similarly, T50 noted that "a school is a system that is forced on children, [unlike] a restaurant or a mall [where] you can choose whether or not to enter."

Teachers acknowledging students' privacy tended to raise concerns about the educational implications of school surveillance, which some of them intertwined with the developmental and emotional needs discussed above. These teachers referred to the educational benefits of trust and learning from mistakes. For example, T16 noted: "I want [students to know] that there's room for mistakes." "If you're always being watched," she explained, it sabotages "the process of constructing the self, identity formation; part of this process is the act of renouncing negative things in me and ascribing to myself positive things." She concluded: "Freedom is tied to privacy." T20 made a similar association between privacy and educational considerations:

There's going to be rule-breaking here ... Otherwise, they wouldn't be normal children ... There are incidents that I prefer not knowing about; I prefer trusting the student that he didn't do it than interrogating him and breaking his trust in me.

Most of the teachers who acknowledged students' privacy also noted that children should be taught how to behave rather than be deterred by the cameras. For instance:

T3: If you turn [the camera] into your educational tool ... it's like you say, "I abandoned education, I turn to enforcement" ... You're an educator. You don't come to school to produce robots with grades and exams ... I want to educate him to be a human being ... so that he won't think that he can cut someone off on the road, and it's OK because no one is filming him.

T6: I feel sad that cameras have replaced the educational work ... The [decision to install the] cameras stems from some kind of educational helplessness.

In this context, some of the teachers used terms borrowed from the field of criminal justice to emphasize their educational concerns. T18 asserted that the cameras produced an environment with "too many prison-like characteristics." T38 similarly claimed that students "aren't criminals," and their education "shouldn't be based on fear." T20 said in this regard that an educator who uses cameras "pays a high price for excessive discipline and monitoring," as he or she "stops being a teacher and starts being a policeman, a prison guard."

### 7.2.3. Merging students' privacy with teachers' privacy

The third cluster of interviewees' responses intertwined students' privacy and teachers' own privacy. Such responses were raised regarding privacy in the classrooms, where the cameras target both teachers and students. The responses in this cluster linked students' privacy to teachers' own rights. This linkage was done mainly by emphasizing the classroom's distinctive character as a space of teacher-student interaction that does not transpire in the hallways and schoolyards. Some of the teachers in this cluster also mentioned students' privacy as a discrete consideration, while others referred to students' privacy only with regard to their own privacy concerns.

Teachers who merged students' privacy with their own privacy concerns presented two main arguments—intimacy and dialogue. Teachers who used the term *intimacy* described teacher-student class interaction. For example, T20 emphasized that "the class is an intimate place" because "it's where the learning process occurs." Other teachers similarly emphasized the intimacy of student-teacher interactions in the class:

T7: There's a different kind of intimacy when you're in the classroom with a teacher or a homeroom teacher.

T30: In the classroom, something intimate transpires between students and [their] teacher. Placing a camera there would ... disturb the class, both from the teacher's perspective and the students'.

The teachers also spoke of the dialogue between teachers and students. T18 explained that "the camera will take away the flow and authenticity" of this dialogue, whereas T29 noted that this dialogue should not be disturbed by external controlling tools, as "classrooms are a private space; this is the place where students and teachers are alone." There is some overlap between these emphases, which all reflect similar ideas about the centrality of teacher-student interaction and identify the classroom as the place where it transpires.

### 7.3. Teachers' perceptions of their own privacy

The third part of our findings delves into teachers' perceptions of their own privacy. When asked about classroom cameras in an open-ended question, the vast majority of the teachers ( $n = 49$ ) brought up first and foremost their own rights and interests as a reason to oppose the cameras, regardless of their perceptions of students' rights. Recall that we did not present the teachers with an explicit question regarding their own privacy.

One group of responses expressed a concern that the footage caught on camera may be misinterpreted and decontextualized. T1, who works in a special education school, noted: "There are situations where you have to handle a violent student, and you must hold him so that he doesn't harm other students, and ... it might be interpreted as if you did something [wrong]." T22 asserted in this regard: "It's an 'excellent' way to place negative pressure [on the teacher] ... I'm very concerned about the fate of teachers these days."

The second group of responses focused on concerns that the camera will have a chilling effect on teachers' behavior in the classroom. For example, T14 explained: "There's an element here that is quite distancing. Everything becomes unnatural. Very much 'by the book.' There's no soul or space to err." Similarly, T18 noted that a camera "limits freedom," as it "may inhibit a teacher, who might become 'dry' and monotonic, and will be afraid to make mistakes." Several teachers noted that cameras in classrooms might inhibit teachers from expressing their views. As T36 put it: "[It] harms the right to privacy, expression, and rational behavior ... in class, you convey your ideology, your opinions, and if cameras are there, I'll think twice." T44 summarized this position by noting that "a camera can be thought-control."

A third group of responses framed the installation of cameras as a managerial expression of mistrust. T34 asserted: "We're here because we want to be here, and it's important to us, and we're doing our job, so 'let go.'" Likewise, T48 explained:

I wouldn't agree [to having a camera in the classroom] because there needs to be a relationship of complete trust between the principal and the teachers ... a camera in the classroom violates my liberty and my privacy ... It's as if someone is sitting above your head.

Some of the teachers who objected to classroom cameras explained their objection in more general terms, referring to a sense of discomfort. For instance, T32 stated that the camera "limits, silences, and disciplines you ... it doesn't allow for spontaneity and ... it intrudes on teachers' privacy." T3 likened the camera to the watchful presence of another person in their class, which makes the teachers feel constantly "tested" and "examined" in an "unpleasant" manner. T29 said in this regard: "The presence of

another person in class disturbs me, so imagine a camera?! ... It's as if someone placed a camera inside my home. Perhaps not in the bedroom but in the living room." T5 noted that cameras in the classroom "would be weird; like big brother is watching you." Some teachers articulated their uneasiness by referring to a need for a quiet place. For example, T16 stated that "teachers are constantly exposed ... Teachers don't have [their own] quiet place inside the school." Three teachers used the metaphor of a prison in this context.

Whereas the above responses object to what the teachers view as further weakening them, another group of responses formulated teachers' objection to classroom cameras from a more empowering frame, clinging to their self-perceived authority in the classroom. These responses portrayed the classroom as their "kingdom" (T42, T54), "home" (T29, T42), or "territory" (T12, T52). T48 emphasized: "This is my space ... there's nothing here for outsiders." T17 and T45 explained the metaphorical importance of closing the classroom door:

T17: I enter [the classroom]; I close the door; I want to be alone with my class, with my 30 students; I manage the class; I decide.  
T45: I'm zealous about my privacy. One of the things that kept me in teaching is the understanding that once I close the door, I have autonomy.

Similarly, T23 explained that "in the classroom, it's every teacher and her conscience ... The classroom is where the teacher expresses herself." T54 noted that "the classroom ... is a private space; not everyone can enter my classroom; even if an inspector shows up and wants to come in, he'll ask my permission." T53 summarized: "The teacher is considered the boss of the class."

## 8. Discussion

This study explored the rights consciousness of teachers as agents who have a professional obligation to protect their students' rights. More specifically, we examined whether and how teachers perceive students' privacy, focusing on the context of school CCTV surveillance. The findings revealed three clusters of teachers' perceptions: (1) teachers who *dismissed students' privacy* as a discrete consideration in assessing school surveillance, primarily regarding hallways and schoolyards, arguing that students are indifferent to their privacy, that there is a crucial need to discipline and control students, and that schools are public and undemocratic spaces; (2) teachers who *acknowledged students' privacy* as a discrete consideration, highlighting students' desire and need for privacy, noting the distinctive character of a school as a semi-private and compulsory space, and taking into account educational implications; and (3) teachers who *merged students' privacy with their own privacy*, primarily in the context of the classroom. Additionally, the findings indicated that almost all the teachers highlighted the importance of their own privacy, citing concerns about the misinterpretation of their activities, a chilling effect, and a general sense of discomfort.

Teachers' privacy consciousness echoed various privacy theories, relating, among other things, to the chilling effect of the panoptic gaze on people's behavior (Foucault, 1975), the need for a "backstage" (Goffman, 1959), and the control of data as a shield against decontextualization (Rosen, 2001). However, the first cluster, comprising 28 teachers, implicitly alluded to these justifications only when they concerned their own privacy rights.

We call this phenomenon *differential rights consciousness*. This phenomenon describes a situation in which individuals name rights violations only when their own rights are derogated. The concept of differential rights consciousness is broad and can be manifested in

a spectrum of situations. It is particularly important for understanding the rights consciousness of individuals who have a professional obligation to protect others' rights. Such contexts may range from individuals having an incidental duty to respect others' rights to those charged with actively promoting these rights. Teachers are closer to the latter end of the spectrum since human rights education should be part of the school curriculum (Convention on the Rights of the Child, 1989, Article 29(1)(b); Lundy & Sainz, 2018; Robinson et al., 2020).

Identifying *differential rights consciousness* among teachers is disturbing, as it implies that these teachers not only prioritized their own rights over their students' rights but failed to acknowledge their students' rights. The reviewed studies indicated that individuals having a professional obligation to protect others' rights merged the rights of those others with organizational goals (Edelman et al., 1993; Munkres, 2008; Perry-Hazan & Birnhack, 2016; Thompson et al., 2015), but none of these studies showed that these individuals ignored or were dismissive of the rights of those under their purview and had not reached the stage of *naming* rights infringements (Felstiner et al., 1980–1981).

The following section offers explanations for teachers' differential rights consciousness derived from multiple fields of study: perspective-taking, rights consciousness, and privacy theories. Each of these accounts requires further study. Importantly, we do not claim this to be a conclusive list. Other contexts may have additional features, which may explain differential rights consciousness to the extent that it is manifested.

Some aspects of the possible explanations relate to our interviewees' organizational position. In the current study's context, we believe that differential rights consciousness reflects an internal conflict of an individual who is caught between decision makers (school principals) and those directly affected by the decision (students) and is himself or herself subject to the decision maker's authority. This conflicted position is intensified, given teachers' tremendous power over their students, but at the same time, teachers are powerless vis-à-vis principals, their being subject to various controlling practices in their schools (Perry-Hazan & Birnhack, 2019). Our explanations also relate to the low social status of Israel's teaching profession (Dolton et al., 2018; OECD, 2018; Perry-Hazan & Tal-Weibel, in press). The focus on the ramifications of the teachers' low organizational and social status contributes to the scarce literature on the rights consciousness of individuals who have a professional obligation to protect others' rights; as noted, studies to date have limited their investigations to workers characterized by high organizational status (Edelman et al., 1993; Munkres, 2008; Perry-Hazan & Birnhack, 2016).

### 8.1. Teachers' differential rights consciousness, perspective-taking, and power

One possible theoretical framework that may explain teachers' differential rights consciousness is perspective-taking. Perspective-taking is the active cognitive process of imagining the world from another's vantage point or imagining oneself in another's shoes to understand their viewpoint, thoughts, motivations, intentions, or emotions (Ku et al., 2015). The active consideration of imagining how other individuals are affected by their situation produces the affective response of empathy (Parker & Axtell, 2001). Perspective-taking also affects the capacity to make ethical and moral decisions (Ku et al., 2015). Thus, perspective-taking is intertwined with professional ethics relating to teachers' morality of care (see Adams, 2015; Shapira-Lishchinsky, 2016).

Whereas perspective-taking promotes closing the gap between self and others, power tends to widen gaps (Blader et al., 2016).

Empirical studies have consistently shown that having high power diminishes perspective-taking and enhances egocentric focus and social distance (see review in [Blader et al., 2016](#); [Galinsky et al., 2016](#)). Thus, we would expect to find differential rights consciousness among individuals who hold power over others. Studies on rights consciousness support this contention by showing that individuals of higher social status are characterized by a greater sense of legal and institutional entitlement (e.g., [Hirsh & Lyons, 2010](#)).

Applying these insights to the context of teachers' perceptions of school surveillance, we would have assumed that teachers would be more sensitive to the students' perspective than would be school principals. As teachers have less power than school principals, their location in the school's organizational structure should be closer to the students' position. However, in a previous study, we examined the decision-making process of school principals who installed CCTVs and found that all principals understood that installing CCTVs may infringe both students' and teachers' privacy ([Perry-Hazan & Birnhack, 2016](#)). Hence, the power gap between teachers and students does not necessarily explain teachers' differential rights consciousness.

Studies on perspective-taking and power offer two possible explanations addressing the fact that, whereas teachers seemed to have diverse perspectives regarding rights consciousness, school principals were unanimous in acknowledging students' privacy as a discrete consideration in assessing school surveillance. Both these explanations relate to our interviewees' specific organizational context as low-status workers in people-centered organizations.

One account relates to teachers' low status and lack of autonomy. [Blader et al. \(2016\)](#) suggested differentiating between high-ranking hierarchical position and social status. Based on several experiments, they found that whereas a heightened sense of one's power can diminish perspective-taking, a heightened sense of one's status can enhance it. [Blader et al.](#) explained that high status enhances perspective-taking because status relies on others to confer respect and esteem. Therefore, status-conferral processes orient high-status parties externally, leading them to focus on others as they strive to monitor and maintain their high-status position. Contrarily, they argued, low status undermines individuals' sense of self and their belief that they have the efficacy to elevate their status. This conclusion may explain why Israeli teachers' low social status may impede their perspective-taking. A study we conducted shed light on Israeli teachers' perspectives regarding the stability of their social status ([Perry-Hazan & Birnhack, 2019](#)). We found that teachers who were under their principals' surveillance, despite feeling uncomfortable or distressed due to this surveillance, justified monitoring teachers by citing some of their colleagues' unprofessional behavior and describing them as irresponsible, negligent, and uncaring. We used social categorization theories ([Tajfel & Turner, 1986](#); [Von Hippel, 2006](#)) to analyze this phenomenon of individuals distancing and differentiating themselves from their own group, as they do not believe that the group's low status can change.

Another possible explanation of the interrelations of differential rights consciousness and perspective-taking relates to the impact of organizational goals on perspective-taking (see review in [Guinote, 2017](#)). Power holders in people-centered organizations tend to pay more attention to subordinates than do those in product-centered organizations ([Overbeck & Park, 2006](#); see also; [Chen et al., 2001](#)). In people-centered organizations, individuals are relevant to the power holder's objectives, and therefore these power holders would be more likely to direct their attention to people than would the powerless, who may tend to be self-focused in social interactions with the power holders ([Overbeck & Park, 2006](#)). As students lay at the core of the school's organizational goals, this

insight may explain why school principals revealed sensitivity to the students' perspective and acknowledged the importance of their privacy; however, many of the teachers did not.

### 8.2. Teachers' differential rights consciousness, their human rights knowledge, and their experiences of rights

Studies on the factors that facilitate the development of rights consciousness provide additional insights that may explain the phenomenon of differential rights consciousness. One of these factors is legal knowledge ([Engel & Munger, 2003](#); [Gallagher & Yang, 2017](#); [Hirsh & Lyons, 2010](#)). Few Israeli teachers encounter courses on education law or children's rights in teacher education programs or professional development courses (see [Perry-Hazan & Tal-Weibel, in press](#)), excepting civics teachers who are introduced to the issue of students' rights in the course of their training. It is not surprising, therefore, that five of the six civics teachers in our sample acknowledged students' privacy as a discrete factor. Teachers' lack of knowledge concerning students' rights characterizes other countries as well (e.g., [Charmaraman et al., 2013](#); [Schimmel & Militello, 2007](#)). Several scholars have argued in this regard that being cognizant of students' rights comprises a crucial component of the ethical knowledge that professional educators need to acquire and learn to process and apply ([Militello et al., 2009](#); [Perry-Hazan & Tal-Weibel, in press](#); [Schimmel & Militello, 2007](#)).

The development of rights consciousness also depends on practices that reinforce the experience of rights, which are intertwined with the social and institutional context ([Almog & Perry-Hazan, 2011](#); [Merry, 2003](#)). For example, in our sample, 12 of the 14 teachers who work in Arab schools were dismissive of the importance of their students' privacy as a discrete consideration, a phenomenon worthy of further study. Surprisingly, the grade level taught by the interviewed teachers did not appear to be a factor in their differential rights consciousness.

### 8.3. Teachers' differential rights consciousness and privacy rights

Another possible explanation of the phenomenon of differential rights consciousness may be context-specific, namely, the amorphous character of privacy rights. As noted, an ongoing social debate has ensued regarding the essence of privacy rights ([Solove, 2008](#)). Some teachers expressed the popular sentiment among adults that children and teenagers have despaired of privacy. This view has been refuted in the literature ([Birnhack et al., 2018](#); [boyd, 2015](#); [Soffer & Cohen, 2014](#)). The teachers' mistaken view seems to have enabled them to be dismissive of students' privacy rights, leaving room only for their own privacy.

The nature of Israeli schools as institutions that provide a public service and are mostly state-funded seemed to affect the conceptualization of the school as a public space. However, its public nature notwithstanding, not everyone can enter the school, certainly not the classrooms. Schools' dual public and private characteristics resulted in the teachers' attempts to identify some physical spaces as public (hallways and schoolyards) and others as private (restrooms, classrooms, and teachers' lounge).

## 9. Concluding comments

Possible limitations of the study concern its single source of data and qualitative design, which do not permit generalization, particularly regarding the impact of teacher demographics on their rights consciousness. Our goal was to better understand teachers' perceptions of students' privacy and provide a robust analysis of the phenomenon of rights differential consciousness in the school

context. Future studies aiming to understand the factors producing differential rights consciousness regarding various types of students' rights in diverse contexts could benefit from qualitative inquiries tapping specific groups of teachers or schools. For instance, further research may explore whether and how strict disciplinary policies or participatory pedagogies influence teachers' rights consciousness (compare Thompson et al., 2015). Another possible avenue for future studies is a quantitative methodology, investigating whether teachers' personal characteristics affect their differential rights consciousness.

Understanding the factors producing differential rights consciousness among those having a professional obligation to protect others' rights may assist in shaping professional development courses that facilitate teachers' naming of rights, complementing professional ethics relating to the morality of justice, and perspective-taking, complementing professional ethics relating to the morality of care (see Adams, 2015; Shapira-Lishchinsky, 2016). Simulations and analysis of case studies are particularly effective for this purpose (see Bullough, 2011; Shapira-Lishchinsky, 2013). Teachers not acknowledging the importance of students' rights are likely to adopt practices that not only derogate students' rights but also hinder the development of students' rights consciousness. Another implication of the study concerns the critical need to design policies focusing on the moral aspects of schooling, including ethical codes (see Barrett et al., 2012; Bullough, 2011; Shapira-Lishchinsky, 2018). A school culture that respects students' privacy may produce an organizational privacy climate that shapes teachers' perceptions (compare Hadar et al., 2018).

## Author statement

**Michael Birnhack and Lotem Perry-Hazan:** Project administration, Conceptualization, Investigation, Methodology, Writing and Editing.

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